



United States
Attorney's Office
Eastern District of Washington



Local Physician Pleads Guilty to Adulterating and Misbranding Medical Devices with the Intent to Defraud

Thursday, December 18, 2025

For Immediate Release

U.S. Attorney's Office, Eastern District of Washington

First Assistant United States Attorney Pete Serrano announced that on December 17, 2025, Dr. Eric Edward Haeger, age 57, of Brewster, Washington, pleaded guilty in Eastern District of Washington to adulterating and misbranding medical devices with the intent to defraud or mislead.

In June 2021, Philips Respironics initiated a recall for certain CPAP and BiPAP devices due to potential health risks associated with the foam used in the devices for sound abatement. The potential health risks identified at the time included inflammatory response, asthma, nausea or vomiting, and toxic or cancer-causing effects.

Based on court documents, between July 2021 and July 2023, Dr. Haeger purchased through online resellers and caused to be shipped to the Eastern District of Washington over 500 used and recalled CPAP and BiPAP devices. Dr. Haeger and others at his direction would then open the devices, attempt to remove the foam using screw drivers, hooks, and other tools, and then put the devices back together. This conduct occurred in locations that were not designed or operated as clean rooms for the purpose of manufacturing medical devices.

Dr. Haeger and staff at his sleep clinic under his control and supervision would then provide the recalled devices to Washington State Medicaid patients. Staff at the sleep clinic under Dr. Haeger's direction and control would then bill the used, recalled devices to Medicaid with the false and fraudulent representation that they were actually new devices that were in good working order.

Dr. Haeger is scheduled for a sentencing hearing on March 24, 2026. The Plea Agreement can be found [here](#)

The case is being investigated by the Food and Drug Administration Office of Criminal Investigations, the Washington State Medicaid Fraud Control Division, the Health and Human Services Office of the

Inspector General, and the Federal Bureau of Investigation. It is being prosecuted by Assistant United States Attorney Jeremy J. Kelley.

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Contact

USAWAE.media@usdoj.gov

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